

ENTERED

August 10, 2026

Nathan Ochsner, Clerk

**UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF TEXAS
GALVESTON DIVISION**

MATTHEW REARDON,

Plaintiff.

V.

WILLIAM OSTEEN, *et al.*,

Defendants.

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CIVIL ACTION NO. 3:25-cv-00203

**ORDER ADOPTING MAGISTRATE JUDGE'S
MEMORANDUM AND RECOMMENDATION**

On March 30, 2026, all pretrial matters in this case were referred to United States Magistrate Judge Andrew M. Edison under 28 U.S.C. § 636(b)(1). Dkt. 55. Judge Edison filed a memorandum opinion, order, and recommendation on July 14, 2026, recommending that the court grant three pending motions to dismiss (Dkts. 65, 68, 69); sua sponte dismiss Defendants Hoby James, Galveston County, and the Doe defendants for failure to state a claim; decline to exercise supplemental jurisdiction over Plaintiff Matthew Reardon's state law claims; and deny Reardon's request for injunctive relief (Dkt. 84). Dkt. 90.

On July 28, 2026, Reardon filed objections to the memorandum and recommendation. Dkt. 92. In accordance with 28 U.S.C. § 636(b)(1)(C), this court is required to "make a de novo determination of those portions of the [magistrate judge's] report or specified proposed findings or recommendations to which objection [has been] made." After conducting this de novo review, the court may

“accept, reject, or modify, in whole or in part, the findings or recommendations made by the magistrate judge.” *Id.*; *see also* Fed. R. Civ. P. 72(b)(3).

The court has carefully considered the objections; the memorandum and recommendation; the pleadings; and the record. The court accepts Judge Edison’s memorandum and recommendation and adopts it as the opinion of the court. Reardon requests leave to amend for a third time. Judge Edison gave Reardon leave to file a *second* amended complaint in April 2026, *five months* after the amended pleading deadline. Dkt. 56 at 2 n.2. The court will not permit Reardon to file a *third* amended complaint.

It is therefore ordered that:

- (1) Judge Edison’s memorandum and recommendation (Dkt. 90) is approved and adopted in its entirety as the holding of the court; and
- (2) the pending motions to dismiss (Dkts. 65, 68, 69) are granted;
- (3) the court sua sponte dismisses Defendants James, Galveston County, and the Doe defendants for failure to state a claim;
- (4) the court declines to exercise supplemental jurisdiction over Reardon’s state law claims; and
- (5) the court denies Reardon’s request for injunctive relief (Dkt. 84).

SIGNED on Galveston Island this 10th day of August 2026.



JEFFREY VINCENT BROWN
UNITED STATES DISTRICT JUDGE